

25STCV38665 25STCV38665

County: los-angeles

Division: Civil Law and Motion

Department: 14

Hearing date: 2026-06-24

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C14%2C06%2F24%2F2026

Source SHA-256: 9353647085c802ddb920b05a98baffbe673ac191d648f0a5555be2499193c978

Case Number: 25STCV38665 Hearing Date: June 24, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF

CALIFORNIA,

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14,

,

ROBERT CAMPBELL and MARY CAMPBELL,

,

Plaintiffs,

v.

,

3M COMPANY, et al.,

,

Defendants.

Case No. 25STCV38665

٢٢٢٢

Hearing Date: June 24, 2026

Time:

9:00 a.m.

٢ [TENTATIVE] ORDER

RE:٢

ALLIED FLUID PRODUCTS CORP.'S MOTION FOR SUMMARY

JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION

I.

Background

On December 30, 2025, Plaintiffs Robert and

Mary Campbell filed their complaint for personal

injury alleging Mr. Campbell developed mesothelioma from

occupational exposure to asbestos-containing construction products,

electrical products, and pumps from the 1950s to the 1990s.

On April 30, 2026, Defendant Allied Fluid Packing &

Supply, Inc. ("Allied") moved for summary judgment or adjudication on the

grounds that Plaintiffs lack and cannot reasonably obtain evidence that Mr.

Campbell was exposed to asbestos-containing products for which it was

responsible.

On June 4, 2026, Plaintiffs opposed,

arguing that Allied failed to shift its burden on summary judgment to

Plaintiffs. Plaintiffs also argue that their responses to written discovery contained

facts establishing Mr. Campbell's exposure to Allied's asbestos-containing

materials.

On June 12, 2026, Allied replied,

arguing that its moving papers shifted the burden to Plaintiffs and that

Plaintiffs' discovery responses were devoid of facts establishing Mr. Campbell

was exposed to asbestos-containing products for which Allied was responsible.

Allied

satisfied its initial burden to show Plaintiffs lack and cannot reasonably

obtain needed evidence to support their causes of action against it.

Plaintiffs' discovery responses were factually devoid as to whether any

asbestos-containing products for which Allied was responsible exposed Mr.

Campbell to asbestos. Plaintiffs fail to present affirmative evidence to

support their claims. Therefore, the court grants Allied's motion for summary

judgment. Allied's motion for summary adjudication is moot.

II.

Discussion

A.

Legal Standard

A defendant seeking

summary judgment must “conclusively negate[] a necessary element of the

plaintiff’s case, or . . . demonstrate[] that under no hypothesis is there a

material issue of fact that requires the process of trial.” (Guz v. Bechtel Nat. Inc. (2000) 24

Cal.4th 317, 334.) To show that a

plaintiff cannot establish an element of a cause of action, a defendant must

make the initial showing “that the plaintiff does not possess, and cannot

reasonably obtain, needed evidence.” (Aguilar

v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854.) “The defendant may, but need not, present

evidence that conclusively negates an element of the plaintiff’s cause of

action. The defendant may also present

evidence that the plaintiff does not possess, and cannot reasonably obtain,

needed evidence – as through admissions by the plaintiff following extensive

discovery to the effect that he has discovered nothing.” (Id. at p. 855.) “ ‘If plaintiffs

respond to comprehensive interrogatories seeking all known facts with

boilerplate answers that restate their allegations, or simply provide laundry

lists of people and/or documents, the burden of production will almost

certainly be shifted to them once defendants move for summary judgment and

properly present plaintiff’s factually devoid discovery responses.’ ” (Weber v. John Crane, Inc. (2006) 143

Cal.App.4th 1433, 1440.)

B.

Causation

In asbestos litigation, a plaintiff is required

to show causation. A plaintiff must show “some

threshold exposure to the defendant's defective asbestos-containing products”

and must further establish in “reasonable medical probability” that a

particular exposure or series of exposures was a “legal cause” of his injury,

i.e., a substantial factor in bringing about the injury. (Rutherford

v. Owens-Illinois, Inc. (1997) 16 Cal.4th 953, 982.) “[T]he proper

analysis is to ask whether the plaintiff has proven exposure to a defendant's

product, of whatever duration, so that exposure is a possible

factor in causing the disease and then to evaluate whether the

exposure was a substantial factor.” (Lineaweaver v. Plant

Insulation Co. (1995) 31 Cal.App.4th 1409, 1416.)

Where a plaintiff's allegations

pertain to asbestos as an intended ingredient of a product the plaintiff was

exposed to occupationally, the plaintiff is required to present evidence “defendant's

product was definitely at his work site and that it was sufficiently prevalent

to warrant an inference that plaintiff was exposed to it...” (Turley v.

Familian Corp. (2017) 18 Cal.App.5th 969, 980 [Citing Lineaweaver, supra, 31

Cal.App.4th at p. 1420.].) 2

1.

Defendant's Burden: Factually Devoid

Allied moves

for summary judgment on the grounds that Plaintiffs lack and cannot reasonably obtain evidence that Mr. Campbell was exposed to an asbestos-containing product for which it is responsible. Specifically, Allied argues that Plaintiffs' discovery responses failed to include specific facts identifying any product supplied by Allied which could have exposed Mr. Campbell to asbestos: "Plaintiffs' discovery responses generally contend that Plaintiff was exposed to asbestos by several different methods, but never has any factual information been provided that discusses how Plaintiff was allegedly exposed to an Allied supplied product. Plaintiffs provide no evidence, factual information, or documents that show an Allied supplied product ever exposed Plaintiff. Plaintiffs' responses provide no specific responsive information as to location of the exposure, the dates, the type of work performed that would have exposed the Plaintiff or even the brand name or manufacturer of the asbestos containing product. Plaintiffs provide only generalized non-specific statements that Plaintiff was exposed Allied. Plaintiffs failed to identify a witness to support their claims that

Plaintiff was exposed by Allied, nor did they identify a specific document that establishes Plaintiff was exposed by Allied. Plaintiffs provided a laundry list of unnamed persons and documents without any specific reference on how these persons or documents actually establish that Allied supplied an asbestos containing product that exposed the Plaintiff...Importantly, Plaintiff is the only named witness against Allied and Plaintiff admitted he had no personal information regarding any alleged exposure by Allied. Plaintiffs, therefore, have factually devoid written discovery responses and the only witness identified against Allied has no personal knowledge regarding Allied.” (Motion at pp.9-10.)

In

opposition, Plaintiffs argue that Allied failed to shift its burden because it failed to show that it served comprehensive discovery on Mr. Campbell's asbestos exposure. Specifically, Plaintiffs argue that Allied failed to provide evidence that it served requests for production on Plaintiffs regarding Mr. Campbell's asbestos exposure. (Motion at p.9.) Plaintiffs also argue that they identified specific witnesses and documents which establish that Mr. Campbell was exposed to asbestos-containing products that Allied supplied. (Id. at p.10.) Plaintiffs further argue that Allied failed to ask Plaintiffs about Mr. Campbell's work with asbestos-containing gaskets or packing supplied by

Allied. (Id. at p.12.)

In reply, Allied argues it was not required to provide

Plaintiffs' responses to requests for production. (Reply at p.5.) Allied also

reiterates its arguments that Plaintiffs' discovery responses failed to

establish that Mr. Campbell was exposed to an asbestos-containing product for

which Allied was responsible.

Allied relies on Plaintiffs' responses to standard

interrogatories, Plaintiffs' responses to special interrogatories, and Mr.

Campbell's deposition testimony to support its motion.

When Allied asked Plaintiffs to "state all facts that

support" their contention that Mr. Campbell was "exposed to an

ASBESTOS-CONTAINING PRODUCT supplied, sold, distributed, or marketed by" Allied,

Plaintiffs responded as follows:

"Plaintiffs refer Defendant to the

deposition of Robert Campbell taken in this matter. Robert Campbell was a

career electrician from 1961 until his retirement in 2004. Additionally, he was

an Electrician's Mate in the United States Navy from 1957-1960. He was

diagnosed with mesothelioma on October 31, 2025.

The

Plaintiff worked at Sherman Electric and assisted in the construction of

California State University – north hall and East Wing and auditorium for approximately 1.5 years. He also worked on new construction of the County Art Museum on Wilshire Blvd for approximately two years. He next worked on the new construction at Ernest Lawrence Middle school on 10100 Variel Ave, Chatsworth, CA for about one year. At Shugart Electric, the plaintiff worked at Los Angeles Times newspaper building remodeling an existing building at First and Spring in Downtown LA. At Coronet Electric, he worked building a new mental hospital for about 8-9 months. He also worked building United Silver in City of Commerce for approximately 2-3 months. At Electroc Construction he worked on the CBS building in Studio City. In 1969, Plaintiff begins working for the City of Los Angeles and is assigned to work at LAX. He works on many buildings at LAX as an electrician. In the mid 1970s Plaintiff was assigned to the public works/general services in Van Nuys. He participated in the maintenance of city owned buildings. He worked in office buildings and libraries owned by the city. In the late 1970s and early 1980s, the Plaintiff worked in the LA Civic Center in the maintenance division.

He

worked in LA City Hall, City Hall East, City Hall South buildings and Parker Center. In the mid 1980s, the plaintiff worked in supervision in the General Services construction division. Plaintiff does not personally know which

products contained asbestos or asbestiform fibers. He worked with and around many construction products, including fire rated ceiling tiles, drywall, joint compound, floor tiles, electrical products. He recalls Lo-Tone and Simpson fire rated ceiling tiles, Kaiser Gypsum, Georgia Pacific and Hamilton joint compounds and texturing, electrical products made by Square D, Cutler Hammer, Eaton, GE, Westinghouse, Allen Bradley, Crouse Hinds, Chico X and other electrical products. Plaintiff recalls working with Crouse Hinds electrical equipment and installing and removing Chico X from electrical conduits

Based

upon information and belief from his attorneys' preliminary investigation, it is believed that many of the products Plaintiff worked with and around would have contained asbestos. The exposure period at issue in this case is approximately 1957 to 2004.

Since

the early 1950s, Defendant Allied Packing & Supply, Inc. was a supply house in San Francisco and Wilmington. Defendant marketed, sold, supplied and distributed various types of asbestos-containing gasket and packing material manufactured by various manufacturers to various industrial and commercial users in California. Per the May 8, 1995 deposition of Ulrick Motzfeldt, former warehouseman then "partner" in the company since 1963, Allied sold material

including from Johns-Manville, Sacomo, Raybestos Manhattan, U.S. Rubber (Uniroyal), and Garlock. In interview, Howard Day, co-founder of Allied Packing, recalled that at the company's inception (circa 1956), Allied carried Sacomo, U.S. Rubber and Raybestos. Mr. Day also recalled that Allied sold gaskets and packing private shipyards, refineries and other users at least from 1956 to 1957 when Day sold his interest in Allied to his partner, George Heiner (deceased). Plaintiff was unaware of the dangers of defendant's asbestos-containing products...

(Romeo

Decl., Exh. E at pp.1-4.)

Plaintiffs also identified Mr.

Campbell's responses to standard interrogatories, employment records, medical records, and Allied's responses to discovery in other matters as documents supporting their contention that Mr. Campbell was exposed to an asbestos-containing product supplied, sold, distributed, or marketed by Allied. (Id. at pp.5-6.)

Mr. Campbell testified at his

deposition that he did not recall the names Allied Fluid Products Corporation,

Allied Packing & Rubber Incorporated, Allied Packing & Supply

Incorporated, or Allied Supply Company. (Romeo Decl., Exh. F at 163:7-20.) Mr.

Campbell did not associate any products or materials with Allied and had no information about whether Allied acted with a conscious disregard for his safety or intended to harm him. (Id. at 164:1-25.)

Allied meets its burden to show that

Plaintiffs' discovery responses are devoid of facts supporting their contention that Mr. Campbell was exposed to an asbestos-containing product for which it was responsible. Plaintiffs' discovery responses were required to provide a factual basis to show products for which Allied was responsible were present at Mr. Campbell's worksite and that these products contained asbestos.

(Turley, *supra*, 18 Cal.App.5th at p. 980; Collin, *supra*, 228

Cal.App.4th at p. 593.)

Plaintiffs' interrogatory

responses fail to state the factual basis for their contention that Allied supplied asbestos-containing products to Mr. Campbell's worksite. Plaintiffs' interrogatory responses set forth where Mr. Campbell worked, which products he worked with, and that Allied sold and supplied various asbestos-containing gaskets and packing materials to various commercial users in California. (Romeo Decl., Exh. E at pp.1-4.) The responses at most establish that Mr. Campbell worked in Los Angeles City buildings between 1957 and 2004 and that Allied supplied asbestos-containing products in California in the same time period. Mr.

Campbell could not recall the names of the allied entities and could not associate any products with Allied.

Plaintiffs'

discovery responses fail to establish that Allied supplied asbestos-containing products to Mr. Campbell's worksite. *McGonnell v. Kaiser Gypsum Co., Inc.*

(2002) 98 Cal.App.4th 1098 ("McGonnell") is instructive. There, a

decedent alleged he developed mesothelioma after being exposed to Kaiser

Gypsum's joint compound. (*McGonnell*, supra, 98 Cal.App.4th at p. 1101.)

The decedent testified at his deposition that he had never heard of Kaiser

Gypsum, worked with its products, or worked near others using its products. (*Id.*)

The evidence also showed that the Kaiser Gypsum cement product at issue did not

contain asbestos after 1973 in Northern California and 1976 in Southern

California. (*Id.* at p.1102.) The plaintiffs advanced evidence that the

cement product could have been used at the decedent's worksite in the 1970s. (*Id.*)

The plaintiffs appealed an order granting Kaiser Gypsum's motion for summary

judgment, arguing that it was within the realm of possibility that the decedent

might have cut into a wall with Kaiser joint compound during his 24 years of

employment. (*Id.* at p.1105.) The plaintiffs presented evidence that

invoices existed showing sale of the joint compound to a contractor for a

project at the decedent's worksite a few years before decedent began his

employment. (Id.) The Court of Appeal rejected the plaintiff's arguments and, citing *Lineaweaver*, *supra*, 31 Cal.App.4th at p. 1421, explained that speculation that the decedent might have cut into a wall that might have contained Kaiser Gypsum's joint compound "creates only a 'dwindling stream of probabilities that narrow into conjecture.'" (McGonnell, *supra*, 98 Cal.App.4th at p. 1106.)

Here, the connection between Allied and Mr. Campbell's worksite is supported by even less evidence than the scenario presented in McGonnell. In McGonnell, there was at minimum evidence that Kaiser Gypsum had delivered products to the plaintiff's worksite at some point before he began his employment. Here, there is no evidence that Allied supplied Mr. Campbell's worksites with any products, let alone asbestos-containing products. Plaintiffs' discovery responses showing that Allied sold asbestos-containing in California at the same time Mr. Campbell worked in Los Angeles City buildings are not sufficient to establish that Allied supplied products to Mr. Campbell's worksites. The argument it was possible for Allied to have supplied products to Mr. Campbell's worksites amounts to speculation. Even if Mr. Campbell worked with the same brands that Allied sold and distributed, there is no evidence that Allied sold any products to Mr. Campbell's employer or that Allied was the sole distributor of these brands. The

discovery record therefore contains no evidence that products supplied by

Allied were present at Mr. Campbell's worksite.

Accordingly,

the discovery responses give rise to an inference that Plaintiffs lack and

cannot reasonably obtain evidence to support their assertion that Mr. Campbell

was exposed to an asbestos-containing product for which Allied was responsible.

The burden shifts to Plaintiffs to present sufficient evidence to create a

trialable issue of material fact as to Mr. Campbell's exposure to an

asbestos-containing product for which Allied is responsible.

2.

Plaintiffs'

Burden

Plaintiffs fail to present

sufficient evidence to create a trialable issue of material fact as to whether

Mr. Campbell was exposed to asbestos by a product for which Allied was

responsible. Plaintiffs first argue that there is no evidence that Allied

served comprehensive discovery on whether Mr. Campbell was exposed to asbestos

by products supplied by Allied because Allied provided no evidence that it

served requests for production on Plaintiffs. However, summary judgment is

proper where a defendant presents evidence that a plaintiff does not possess

and cannot reasonably obtain evidence to support their claims against it. (Aguilar, supra, 25 Cal.4th at p.855.) It is reasonable to infer that a plaintiff lacks and cannot reasonably obtain such evidence where the plaintiff's response to comprehensive interrogatories seeking all known facts is factually devoid. (Weber, supra, 143 Cal.App.4th at p.1440.) Here, Allied propounded comprehensive special interrogatories on Plaintiffs asking them to "state all facts that support" their contention that Mr. Campbell was "exposed to an ASBESTOS-CONTAINING PRODUCT supplied, sold, distributed, or marketed by" Allied. (Romeo Decl., Exh. E at pp.1-4.) As discussed, Plaintiffs' responses were devoid of facts establishing that Allied supplied products to Mr. Campbell's worksite. It is reasonable to infer that Plaintiffs lack and cannot reasonably obtain evidence to support their claims against Allied even without evidence that Allied propounded requests for production on Plaintiffs.

Plaintiffs next

argue that Allied failed to shift its burden because the responses identified witnesses and documents which Allied failed to address in its moving papers.

Plaintiffs point to their responses to Allied's special interrogatories numbers 3 and 4, which identify Allied employees as witnesses and an extensive list of documents, including Allied's responses to discovery in other matters. However, Plaintiffs fail to explain how these witnesses or documents support their

claims against Allied. Plaintiffs make no argument that the witnesses or

documents identified in their responses have

or include evidence that Allied supplied products to Mr. Campbell's worksite.

As it stands, the evidence in the discovery record fails to establish that

asbestos-containing products supplied by Allied were present at Mr. Campbell's

worksite.

Plaintiffs further

argue that Allied never asked Mr. Campbell about his work with gaskets or

packing during his deposition. Specifically, Plaintiffs argue: "Allied did not

ask Plaintiff Robert Campbell at his deposition if he ever worked with any

gaskets or packing at any time, nor did any other defendant...This matters

because Allied admittedly did not ever supply asbestos-containing

Allied-branded products, but rather supplied asbestos-containing gasket and

packing material manufactured by U.S. Rubber, Raybestos-Manhattan,

Johns-Manville, Sacomo, and Garlock, and sold these products in packaging

bearing these manufacturers' logos...In other words, Mr. Campbell certainly would

know if he ever worked with gaskets and packing (if he had been asked), and

might have been able to identify the manufacturers of same (had he been asked),

but he wasn't." (Opp. at p.12.) Even if Allied had asked about Mr. Campbell's

work with asbestos-containing gaskets and packing material, Mr. Campbell's

responses would have at most established that he worked with those products at his worksite, not that Allied supplied these products. Mr. Campbell testified that he could not recall the names of the Allied entities and did not associate Allied with any products. (Romeo Decl., Exh. F at 163:7-20, 164:1-25.) Thus, even if he had information about the products he worked with, Mr. Campbell had no information about whether Allied supplied these products. Plaintiffs' argument that Allied failed to shift its burden is thus without merit.

Plaintiffs rely on

additional excerpts from Mr. Campbell's deposition to argue that Mr. Campbell

identified former co-workers William Older, Art Smith, and Art Prost as

witnesses who may have information regarding Mr. Campbell's exposure to

products supplied by Allied. (Opp. at p.13.) Mr. Campbell testified at his

deposition that these witnesses had information about whether he worked with

Square D equipment. (Stewart Decl., Exh. 1 at 154:18-157:20 ["Q: Okay. Are you

aware of any witnesses with information about the work you did with or around

Square D components or equipment? A: I'm sure my coworkers could identify me

working on their equipment...A: William Older...Q: And where did Mr. Older work

with you? A: We worked for the City of Los Angeles with the Building

Maintenance Division, and also the City of Los Angeles General Services

Construction Division...A:...Art Smith...Q: Okay. And where did you work with Mr.

Smith? A: I worked with Mr. Smith in Los Angeles Civic Center in the

Maintenance Division and also in the Los Angeles General Services Construction

Division...Q: Okay. Anyone else that you can recall besides Mr. Older and Mr.

Smith who might have information about your work with or around Square D

products? A: Another name, Art Prost...Q: And where did you work with Mr. Prost?

A: I worked with Mr. Prost in the General City of Los Angeles General Service

Construction Division."].)

Mr. Campbell

testified that Mr. Older, Mr. Smith, and Mr. Prost could testify about his work

with Square D products, not that they could testify as to whether Allied

supplied products to his worksite. Mr. Campbell's testimony at most establishes

where these witnesses worked and that they have knowledge of Mr. Campbell's

work with Square D products. There is no evidence that these witnesses have

information about Allied and whether it supplied products to Mr. Campbell's

worksites. As discussed, Allied successfully shifted its burden on summary

judgment. It is now Plaintiffs' burden to raise a triable issue of material

fact over whether Allied supplied asbestos-containing products to Mr.

Campbell's worksite. Plaintiffs had ample time since Mr. Campbell's deposition

in April 2026 to investigate these witnesses, determine whether they had

information about Allied, and depose them or request a continuance to depose

them. Plaintiffs failed to present any other affirmative evidence that Allied

supplied asbestos-containing products to Mr. Campbell's worksite.

Accordingly,

Plaintiffs fail to meet their burden to raise a triable issue of material fact

over whether Allied supplied asbestos-containing products to Mr. Campbell's

worksite. Therefore, Allied's motion for summary judgment is granted.

III.

Conclusion

Allied

satisfied its initial burden to show Plaintiffs lack and cannot reasonably

obtain needed evidence to support their causes of action against it.

Plaintiffs' discovery responses were factually devoid as to whether any

asbestos-containing products for which Allied was responsible exposed Mr.

Campbell to asbestos. Plaintiffs fail to present affirmative evidence to

support their claims. Therefore, the court grants Allied's motion for summary

judgment. Allied's motion for summary adjudication is moot.